

25VECV05981 25VECV05981

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Case Number: 25VECV05981 Hearing Date: June 30, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Sassan

Aryabod,

Plaintiff,

v.

Mohammad

Heidari, et al.

Defendants.

Case Number Department

25VECV05981 107

COURT'S [TENTATIVE]

ORDER RE:

Demurrer with Motion to Strike

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

(1) Overrule the demurrer as to the first, second, third, and sixth causes of action; (2) Sustain the demurrer as to the seventh cause of action; (3) Deny the motion to strike; (4) Grant leave to amend.

I.

BACKGROUND

On

October 20, 2025, Plaintiff Sassan Aryabod filed a complaint against Defendants Mohammad Heidari, Bahareh Behnia, and Does 1 through 20, alleging causes of action for: (1) false promise; (2) intentional misrepresentation; (3) negligent misrepresentation; and (4) unjust enrichment.

On

March 6, 2026, Cross-Complainants Mohammad Hidari and Bahareh Behnia ("Cross-Complainants") filed a cross-complaint against Cross-Defendants Sassan Aryabod and Does 1 to 20, alleging causes of action for: (1) disgorgement; (2) intentional misrepresentation; (3) negligent misrepresentation; (4) breach of implied warranty of workmanlike performance; (5) negligence; and (6) violations of California Consumer Legal Remedies Act.

On April 1, 2026,

Cross-Defendant Sassan

Aryabod ("Cross-Defendant") filed a demurrer with motion to strike. On May 5, 2026, the court sustained the demurrer as to the second, third, and sixth causes of action and overruled it as to the first, fourth, and fifth causes of action. (05/05/26 Minute Order pp. 11-12.) The court granted the motion to strike as to the sixth cause of action and denied it as to the first cause of action and the request for emotional distress and pain and suffering damages. (05/05/26 Minute Order pp. 11-12.) The court granted Cross-Complainants leave to amend. (05/05/26 Minute Order p. 12.)

On May 20, 2026,

Cross-Complainants filed a first amended cross-complaint against Cross-Defendant and Does 1 to 20, alleging causes of action for: (1) disgorgement; (2) intentional misrepresentation; (3) negligent misrepresentation; (4) breach of implied warranty of workmanlike performance;

(5) negligence; (6) violations of California Consumer Legal Remedies Act; and
(7) breach of contract.

On June 4, 2026,
Cross-Defendant filed a demurrer with motion to strike. On June 16, 2026,
Cross-Complainants filed an opposition. As of June 25, 2026, no reply has been
filed.

II. TIMELINESS

“A person against
whom a complaint or cross-complaint has been filed may, within 30 days after
service of the complaint or cross-complaint, demur to the complaint or
cross-complaint.” (Code Civ. Proc., § 430.40, subd. (a).) Per Code of Civil Procedure section 435, subdivision (b)(1), a
motion to strike should also be filed within 30 days after service of the
complaint. (See Code Civ. Proc., § 412.20, subd. (a)(3).)

Per Code
of Civil Procedure section 1005, subdivision (b), moving papers must be
filed at least 16 court days before they are set for hearing, oppositions must
be filed at least nine court days before the set hearing, and replies must be
filed at least five court days before the set hearing.

Cross-Complainants served Cross-Defendant
with the first amended cross-complaint by electronic service on May 20, 2026
(Proof of Service filed 05/20/26.) Cross-Defendant filed the demurrer with
motion to strike less than thirty days later. Thus, the demurrer with motion to
strike was timely under Code of Civil Procedures sections 430.40 and 435.

The demurrer with motion to strike and
opposition were timely filed under Code of Civil Procedure section 1005,
subdivision (b).

III. MEET AND CONFER

California Code of Civil
Procedure section 430.41, subdivision (a) requires parties to “meet and confer

in person, by telephone, or by video conference” before the filing of a demurrer to attempt to informally resolve the objections raised in the demurrer. The demurring party is required to file and serve with the demurrer a declaration either confirming that parties were unable to resolve the issues raised by the demurrer despite having met and conferred or that the opposing party failed to meet and confer with the demurring party in good faith. (Code Civ. Proc. §430.41, subd. (a)(3).)

California

Code of Civil Procedure §435.5, subdivision (a) also requires parties to meet and confer before filing a motion to strike.

Cross-Defendant's

counsel states they met and conferred with Cross-Complainants' counsel by email and telephone but the parties were unable to resolve the issues. (Saboorian Declaration ¶¶ 4-10.) The court finds Cross-Defendant satisfied the meet and confer requirement.

IV.

DEMURRER

a. Legal Standard

“A demurrer tests the pleading alone, and not the evidence or the facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (“E-Fab”) (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Id.) The court also considers “judicially noticed matters.” (Id.) A complaint must contain “[a] statement of the facts constituting the cause of action, in ordinary and concise language.” (Code Civ. Proc., §425.10, subd. (a)(1).) A “complaint ordinarily is sufficient if it alleges ultimate rather than evidentiary facts.” (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.)

;

A party may demur to a complaint or cross-complaint because it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e).) A party may also demur because the complaint or cross-complaint is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) “[U]ncertain” includes

ambiguous and unintelligible.” (Code Civ. Proc., § 430.10, subd. (f).)

b. Discussion

Disgorgement:

Cross-Defendant

argues the disgorgement claim is uncertain and fails to plead facts showing it is not barred by the statute of limitations. (Demurrer Memorandum p. 5.)

Specifically, Cross-Defendant argues “Cross-Complainants must plead facts showing that their disgorgement claim was filed within one year of the completion or cessation of Cross-Defendant’s performance.” (Demurrer Memorandum p. 5.)

In

opposition, Cross-Complainants argue the court previously overruled Cross-Defendant’s demurrer to this cause of action and the first amended cross-complaint does not clearly and affirmatively show this cause of action is time-barred. (Opposition pp. 6-7.)

Claims

for disgorgement under Business and Professions Code section 7031, subdivision (b) have a one-year statute of limitations. (Eisenberg Village etc. v. Suffolk Construction Co., Inc. (2020) 53 Cal.App.5th 1201, 1203.) “In the case of a section 7031(b) claim, the cause of action is complete when an unlicensed contractor completes or ceases performance of the act or contract at issue.” (Id. at pp. 1214-1215.)

Cross-Complainants

allege Cross-Defendant had not finished work as of September 2023 and Cross-Complainants moved back into their home in September 2023. (FACC ¶¶ 23-24.) Cross-Complainants do not allege a specific date Cross-Defendant completed or ceased performance.

“In

order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows merely that the action may be barred.” (E-Fab, supra, 153 Cal.App.4th at pp. 1315-1316.) Here, the defect does not clearly and affirmatively appear on the face of the first amended cross-complaint.

The
demurrer on this ground is overruled.

Intentional
Misrepresentation:

Cross-Defendant
argues Cross-Complainants failed to plead fraud with the requisite specificity.
(Demurrer Memorandum pp. 7-8.) Cross-Defendant also argues the fraud cause of
action is barred by the economic loss rule. (Demurrer Memorandum pp. 8-9.)

In
opposition, Cross-Complainants argue they sufficiently allege the elements of a
fraud cause of action and the economic loss rule does not bar the claim.
(Opposition pp. 7-9.)

The elements of a
fraud cause of action are “(a) misrepresentation (false representation,
concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c)
intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e)
resulting damage.” (Rattagan v. Uber Technologies, Inc. (“Rattagan”)
(2024) 17 Cal.5th 1, 32.) Fraud must be alleged with specificity. (Id.
at p. 43.) “When affirmative misrepresentation fraud is alleged, ‘This
particularity requirement necessitates pleading facts which
“show how, when, where, to whom, and by what means the representations were
tendered.”’” (Id. original italics.)

Cross-Complainants
allege that in May 2022, at Cross-Complainants’ home, Cross-Defendant verbally
told Cross-Complainants he was a licensed contractor and could and would
remodel Cross-Complainants home. (FACC ¶ 13.) Cross-Complainants allege
Cross-Defendant was not licensed. (FACC ¶ 36.) The court finds
Cross-Complainants sufficiently allege a misrepresentation, including the how
(verbally), when (May 2022), where (at Cross-Complainants’ home), to whom
(Cross-Complainants) and by what means (verbally). (FACC ¶¶ 13, 36.)

Cross-Complainants
allege Cross-Defendant knew the representations were false but “made the
representations about his licensure, timeline, and cost to induce

Cross-Complainants to hire him and enter into the construction contract.” (FACC ¶¶ 48, 53.) These allegations sufficiently allege knowledge of falsity and intent to defraud.

Cross-Complainants

allege they relied on the representations and moved out of their home so Cross-Defendant could begin demolishing and construction. (FACC ¶ 20.) This allegation sufficiently alleges justifiable reliance.

Finally,

Cross-Complainants allege damages. (FACC ¶¶ 61-68.)

“[T]he

economic loss rule does not apply to limit recovery for intentional tort claims like fraud.” (Rattagan, *supra*, 17 Cal.5th at p. 38.) In Rattagan, the Supreme Court of California stated:

When evaluating

whether the parties' expectations and risk allocations bar tort recovery, the court must consider the alleged facts. First, applying standard contract principles, it must ascertain the full scope of the parties' contractual agreement, including the rights created or reserved, the obligations assumed or declined, and the provided remedies for breach. Second, it must determine whether there is an independent tort duty to refrain from the alleged conduct. Third, if an independent duty exists, the court must consider whether the plaintiff can establish all elements of the tort independently of the rights and duties assumed by the parties under the contract.

(Id.

at p. 26.)

In

opposition, Cross-Complainants argue the economic loss rule does not bar this action because Cross-Defendant's “misrepresentation of his licensure and qualifications breaches a duty that exists independent of any contract for remodeling services” and “the damages alleged in the FACC are not merely the difference between the promised and actual performance of the contract. Rather, they reflect reliance losses and out-of pocket expenditures induced by the fraud.” (Opposition p. 9, original underlining.)

Cross-Complainants

allege they paid \$100,000 to fix defective work. (FACC ¶ 62.)

Cross-Complainants also allege:

As a result of

Cross-Defendant's intentional misrepresentations, Cross-Complainants paid Cross-Defendant over \$600,000 and incurred additional expenses for work that Cross-Defendant was not equipped to complete, and/or lacked the competency to perform and therefore failed to complete performance and Cross-complainants have been compelled to incur additional expenses to complete their home and remedy the many defects that Cross-Defendant caused in their home.

(FACC

¶ 66.) The court concludes Cross-Complainants allege sufficient facts to allege an independent harm or liability separate from the contract based on Cross-Defendant's misrepresentations regarding his license status.

The

demurrer on this ground is overruled.

Negligent

Misrepresentation:

Cross-Defendant

argues Cross-Complainants fail to allege an actionable negligent misrepresentation and the alleged misrepresentation about the timeline and project cost "concern future performance under the alleged construction agreement." (Demurrer Memorandum pp. 9-10.) As for the licensure statement, Cross-Defendant argues Cross-Complainants fail to plead reliance and causation. (Demurrer Memorandum p. 10.) Cross-Defendant argues Cross-Complainants do not allege facts showing the licensure statement caused the alleged damages. (Demurrer Memorandum p. 10.) Finally, Cross-Defendant argues "the FACC still relies on conclusory allegations that Cross-Defendant lacked reasonable grounds for believing the representations were true." (Demurrer Memorandum p. 11.)

In

opposition, Cross-Complainants argue they sufficiently allege this cause of action relating to the allegations concerning Cross-Defendant's license status. (Opposition pp. 9-10.)

“The

elements of negligent misrepresentation are ‘(1) the misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, (3) with intent to induce another’s reliance on the fact misrepresented, (4) justifiable reliance on the misrepresentation, and (5) resulting damage.’” (National Union Fire Ins. Co. of Pittsburgh, PA v.

Cambridge Integrated Services Group, Inc. (2009) 171 Cal.App.4th 35, 50.)

“While there is some conflict in the case law discussing the precise degree of particularity required in the pleading of a claim for negligent misrepresentation, there is a consensus that the causal elements, particularly the allegations of reliance, must be specifically pleaded.” (Id.)

The

negligent misrepresentation cause of action incorporates all the first amended cross-complaint’s allegations. (FACC ¶ 69.)

Cross-Complainants

allege a misrepresentation, that Cross-Defendant represented he was a California licensed-contractor, when he was “never licensed as a California contractor.” (FACC ¶¶ 71, 73.)

Cross-Complainants

allege “Cross-Defendant did not have reasonable grounds for believing he was licensed when he was not.” (FACC ¶ 77.)

Cross-Complainants

allege Cross-Defendant “intended to induce Cross-Complainants’ reliance or knew that reliance was probable” and “made the representations to induce Cross-Complainants to hire him for the remodeling work.” (FACC ¶¶ 80-81.)

Cross-Complainants

allege they reasonably relied on Cross-Defendant’s representation and moved out of their home. (FACC ¶ 20.)

Finally,

Cross-Complainants allege damages. (FACC ¶ 88-91.)

Cross-Defendant

argues there are insufficient facts plead here to show the misrepresentation

about Cross-Defendant's license caused the damages. (Demurrer Memorandum p. 10.) But Cross-Complainants allege they suffered damages because of their reliance. (FACC ¶ 87.) The court, for purposes of the demurrer, accepts the allegations as true.

The
demurrer on this ground is overruled.

Violations
of California Consumer Legal Remedies Act:

Cross-Defendant
argues Cross-Complainants fail to allege a cause of action under the Consumers Legal Remedies Act to the extent Cross-Complainants seek damages without pleading notice. (Demurrer Memorandum p. 12.) Cross-Defendant also argues Cross-Complainants' bare request for injunctive relief is insufficient. (Demurrer Memorandum p. 12.) Cross-Defendant argues Cross-Complainants do not identify the specific subdivision violated. (Demurrer Memorandum p. 13.) Finally, Cross-Defendant argues the cause of action is uncertain and does not plead causation. (Demurrer Memorandum p. 13.)

In
opposition, Cross-Complainants state they seek injunctive relief. (Opposition p. 13.) Cross-Complainants also argue they allege Cross-Defendant "engaged in unfair or deceptive practices . . ." (Opposition p. 13.) Cross-Complainants argue "[t]hese allegations support a claim for injunctive relief to prevent Cross-Defendant from continuing to engage in these deceptive practices with other consumers." (Opposition p. 13.) Finally, Cross-Complainants argue they allege violations of Civil Code section 1770. (Opposition p. 13.)

"[S]ection
1782, subdivision (d) contemplates the filing of a CLRA action for injunctive relief alone, and such actions are not subject to the requirements of subdivisions (a) and (b) of notice and allowance for voluntary correction." (Meyer v. Spring Spectrum L.P. (2009) 45 Cal.4th 634, 644.)

Cross-Complainants
allege they are seeking injunctive relief. (FACC ¶ 159.) Cross-Defendant argues Cross-Complainants must allege what injunctive relief they are seeking. (Demurrer Memorandum pp. 12-13.) Cross-Defendant cites no authority for this

argument. The court does not address the issue further.

Cross-Complainants

also set forth the specific alleged deceptive practices. (FACC ¶¶ 142-148.)

Cross-Defendant cites no authority for their argument Cross-Complainants must cite to the specific subdivision of Civil Code section 1770. (Demurrer Memorandum pp. 13.)

The

demurrer on this ground is overruled.

Breach

of Contract:

Cross-Defendant

argues the breach of contract cause of action is barred by the statute of limitations, is insufficient to allege the material terms of the alleged contract, and is uncertain. (Demurrer Memorandum pp. 13-15.)

In

opposition, Cross-Complainants argue they sufficiently allege this cause of action. (Opposition pp. 12-13.) Cross-Complainants also argue the continuing breach doctrine and discovery rule apply here. (Opposition pp. 10-11.)

Oral

contracts have a two-year statute of limitations. (Code Civ. Proc., § 339.)

Cross-Complainants

allege that based on Cross-Defendant's "promises to them, Cross-Complainants expected the entire work to be completed within three months and therefore expected to move back into their home sometime in September 2022." (FACC ¶ 20.) Cross-Complainants further allege Cross-Defendant was performing construction work on the home in September 2023. (FACC ¶¶ 23-24.)

Cross-Complainants

specifically state in the opposition that this cause of action is based upon an agreement in May 2022 where Cross-Defendant would complete the work within three months. (Opposition p. 12.) Thus, the court concludes the work was due to be complete by August 2022.

Cross-Complainants

argue defects continue to exist in their home and Cross-Complainants continue to incur expenses to repair those defects. (Opposition p. 11.)

Cross-Complainants cite *Romano v. Rockwell International, Inc.* ("Romano") (1996) 14 Cal.4th 479 for the following propositions:

Where

there are ongoing contractual obligations and the parties continue to rely on the contract despite breaches, the statute of limitations does not begin to run until the plaintiff has elected to treat the breach as terminating the contract. (*Romano v. Rockwell Internat., Inc.* (1996) 14 Cal.4th 479.) In the context of successive breaches of a continuing contractual obligation, where the parties did not mutually abandon or rescind the contract upon a breach or successive breaches, the injured party can wait until the time arrived for complete performance by the other party and then bring an action for damages for such breaches. *Id.* The plaintiff is not bound to treat the contract as abandoned on the first breach of it, or on any particular breach, but has the election to continue to rely on it, and the statute of limitations does not begin to run until the plaintiff makes an election. *Id.*

(Opposition
p. 10.)

It

is unclear to the court here what ongoing contractual obligations were present here. Further, Cross-Complainants allege only that Cross-Defendant continued to perform work in September 2023. (FACC ¶ 24.) If that date was the final date of the alleged ongoing contractual obligations, then it too was more than two years before this action was filed.

The

complaint in this action was filed on October 20, 2025, and Cross-Complainants filed the cross-complaint on March 6, 2026.

The

demurrer on this ground is sustained.

V.

MOTION

TO STRIKE

a. Legal Standard

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437, subd. (a).)

b. Discussion

California

Consumers Legal Remedies Act:

Cross-Defendant

argues the court should strike references to damages under the sixth cause of action because Cross-Complainants do not allege they provided Cross-Defendant notice. (MTS Memorandum p. 3.) Cross-Defendant moves to strike paragraphs 154 through 158 and Prayer Items Nos. 2 and 3 “to the extent they seek damages under the Sixth Cause of Action . . .” (MTS Memorandum p. 3.)

Civil

Code section 1782, subdivisions (a) and (b) state:

(a) Thirty days or more prior to the commencement of an action for damages pursuant to this title, the consumer shall do the following:

(1) Notify the person alleged to have employed or committed methods, acts, or practices declared unlawful by Section 1770 of the particular alleged violations of Section 1770.

(2) Demand

that the person correct, repair, replace, or otherwise rectify the goods or services alleged to be in violation of Section 1770.

The notice shall be in writing
and shall be sent by certified or registered mail, return receipt requested, to
the place where the transaction occurred or to the person's principal
place of business within California.

(b) Except as provided in
subdivision (c), no action for damages may be maintained under Section
1780 if an appropriate correction, repair, replacement, or other
remedy is given, or agreed to be given within a reasonable time, to the consumer
within 30 days after receipt of the notice.

Cross-Complainants do not allege
they satisfied the notice requirement. However, Civil Code section 1780
authorizes a consumer to bring an action under Code of Civil Procedure section
1770 when the consumer "suffers any damage as a result of the use or employment
by any person of a method, act, or practice declared to be unlawful
by Section 1770 . . ." Thus, the court does not find Cross-Complainants'
references to damages to be improper. The motion to strike paragraphs 154
through 158 and Prayer Items Nos. 2 and 3 are denied.

Cross-Defendant also moves to
strike the reference to injunctive relief in paragraph 159. (MTS Memorandum p.
4.) Cross-Defendant appears to repeat the same arguments here as it raised in
the demurrer argument relating to injunctive relief. The court finds those arguments meritless.
Cross-Defendant's motion to strike paragraph 159 is denied.

Emotional
Distress, Pain and Suffering, and Other Non-Economic Damages:

Cross-Defendant
moves to strike references to emotional distress, psychological distress,
mental anguish, pain and suffering, and other non-economic damages in
paragraphs 68 and 93 and Prayer Item No. 4. arguing that "[t]o the extent these
damages are sought for breach of contract, implied warranty, disgorgement, LRA
damages, or construction-related economic loss, they are improper as a matter
of law." (MTS Memorandum p. 5.)

Cross-Defendant
states they recognize the court previously denied the motion to strike
emotional distress damages because Cross-Complainants sufficiently alleged a

negligence claim. (MTS Memorandum p. 5.) Cross-Defendant argues the renewed argument here is proper because Cross-Complainants now allege a new breach of contract claim. (MTS Memorandum p. 5.)

The
court sustains the demurrer to the breach of contract cause of action. Thus,
the motion to strike relating to that cause of action is moot.

“For
the breach of an obligation not arising from contract, the measure of damages,
except where otherwise expressly provided by this Code, is the amount which
will compensate for all the detriment proximately caused thereby, whether it
could have been anticipated or not.” (Civ. Code, § 3333.)

Cross-Defendant
does not argue Cross-Complainants’ negligence cause of action is insufficiently
plead. Cross-Complainants’ request for damages for emotional distress and pain
and suffering is proper.

The
motion to strike on this ground is denied.

Prayer
Item No. 5:

Cross-Defendant
moves to strike Prayer Item No. 5 which seeks “Damages for cost to bring the
current action.” (MTS Memorandum p. 6.) Cross-Defendant argues this is improper
because costs are not damages. (MTS Memorandum p. 6.)

Per
Code of Civil Procedure section 435.5, subdivision (b):

A
party moving to strike a pleading that has been amended after a motion to
strike an earlier version of the pleading was granted shall not move to strike
any portion of the pleadings on grounds that could have been raised by a motion
to strike as to the earlier version of the pleading.

Prayer

Item No. 5 in the first amended cross-complaint seeks “Damages for cost to bring the current action.” (FACC Prayer Item No. 5.)

Prayer

Item No. 5 in the original cross-complaint sought “Damages for cost to bring the current action.” (Cross-Complaint Prayer Item No. 5.)

Cross-Defendant

could have, but did not, raise this issue in the first motion to strike. (See Notice of Demurrer with Motion to Strike pp. 3-4.)

The

motion to strike Prayer Item No. 5 is denied.

Breach

of Contract Cause of Action:

Cross-Defendant

argues the breach of contract should be stricken. (MTS Memorandum pp. 6-7.)

The

court sustains the demurrer to this cause of action. Thus, the motion to strike the cause of action is moot.

Disgorgement

Cause of Action:

Cross-Defendant

argues the disgorgement cause of action should be stricken because it is barred by the statute of limitations and creates uncertainty. (MTS Memorandum pp. 7-8.)

The

court addresses these issues above and need not address them further here.

The

motion to strike this cause of action is denied.

VI.

LEAVE

TO AMEND

"Where the defect raised

by a motion to strike or by demurrer is reasonably capable of cure, 'leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question.'" (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.)

Cross-Complainants have

had an opportunity to amend the cross-complaint. Cross-Complainants, without seeking leave from the court, added a cause of action for breach of contract. However, the court finds there is a reasonable possibility Cross-Complainants can cure the defect identified above.

VII.

CONCLUSION

For

the foregoing reasons, the court overrules the demurrer as to the first, second, third, and sixth causes of action. The demurrer to the seventh cause of action is sustained. The motion to strike is denied. Cross-Complainants are granted leave to amend within thirty (30) days of this order.

Dated: June 30, 2026 _____ Hon. Eric Harmon

Judge of the Superior Court